

# HOUSE . . . . . No. 5382

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, April 11, 2026.

The committee on Health Care Financing to whom was referred the Bill relative to toxic-free medical devices (House, No. 4298), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5382).

For the committee,

JOHN J. LAWN, JR..

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to toxic-free medical additives reforming your health.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 1. Chapter 111 of the General Laws is hereby amended by inserting after Section  
2   244 the following section:-

3           Section 245. (a) For the purposes of the section, unless the context clearly requires  
4   otherwise, the following words shall have the following meanings:-

5           "DEHP." Di(2-ethylhexyl) phthalate

6           "Health care practitioner." An individual who is authorized to practice some component  
7   of the healing arts by a license, permit, certificate or registration issued by a Commonwealth  
8   licensing agency or board.

9           "Intentionally added DEHP." Either of the following:

10          (1) DEHP that a manufacturer has intentionally added to an intravenous solution  
11   container or intravenous tubing product and that has a functional or technical effect on the  
12   product.

13 "Intravenous solution container." A container used to house medicine, fluid or nutrition  
14 therapy that is intravenously delivered to a patient in a hospital, outpatient facility or other health  
15 care facility.

16 "Intravenous tubing." Tubing used to intravenously administer fluids, medication or  
17 nutrients directly to an adult, child, or infant.

18 "Ortho-phthalate." A class of chemicals that are esters of ortho-phthalic acid, including  
19 DEHP and any of the following:

20 (1) Benzyl-butyl phthalate (BBP)

21 (2) Dibutyl phthalate (DBP)

22 (3) Dicyclohexyl phthalate (DCHP)

23 (4) Diethyl phthalate (DEP)

24 (5) Di-isobutyl phthalate (DIBP)

25 (6) Di-isodecyl phthalate (DIDP)

26 (7) Di-isononyl phthalate (DINP)

27 (8) Di-n-hexyl phthalate (DnHP)

28 (9) Di-n-octyl phthalate (DNOP)

29 (10) Di-n-pentyl phthalate (DnPP)

30 (11) Diisoheptyl phthalate (DIHP)

“Unintentionally added DEHP.” DEHP in an intravenous solution container or intravenous tubing product that is not used for functional or technical effect on the product.

(b) Beginning January 1, 2030, a person or entity shall not manufacture, sell or contribute into commerce in the Commonwealth intravenous solution containers made with intentionally added DEHP.

(c) Beginning January 1, 2035, a person or entity shall not manufacture, sell or distribute into commerce in the Commonwealth intravenous tubing made with intentionally added DEHP.

(d) A person or entity may not replace DEHP, pursuant to this section, with another ortho-phthalate in a new or revised medical device.

(e) An intravenous solution container or intravenous tubing product shall not have unintentionally added DEHP present at a quantity at or above 0.1 percent weight per weight (w/w).

(f) The following items, as described in Title 21 of the Code of Federal Regulations, are exempt from these provisions:-

(1) human blood collection and storage bags

(2) aspheresis and cell therapy blood kits and bags, including integral tubing

(g) A person or entity, due to pending United States Food and Drug Administration approval for the DEHP-free intravenous solution container or due to the manufacturer not having adequate equipment to manufacture the DEHP-free intravenous solution container, shall meet the requirement in subsection (b) by January 1, 2032, if all of the following conditions are met:

51           (1) The person or entity notified its Massachusetts customers, no later than Oct 1, 2026,  
52   that it has commenced development of the DEHP free intravenous solution container to meet the  
53   requirements of this section.

54           (2) The person or entity provides notice to its customers and posts to its official internet  
55   website, no later than January 1, 2028, that it will not meet the deadline imposed pursuant to  
56   subsection (b).".